

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 20, 2018

Due to the Christmas holiday schedule, the Governing Body of the City of Cheyenne instead met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Roybal, and pursuant to support received by Mr. Cook and Mr. Johnson, Agenda Item #13 was removed from the Consent Agenda. Upon request by Mr. Case, and pursuant to support received by Mr. Cook and Dr. Rinne, Agenda Item #20(a) was removed from the Consent Agenda. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. White. Mr. Shanor advised he would be abstaining from voting due to an employment-related conflict of interest on Agenda Item #18. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Shanor who did not vote.

[CA] Minutes from Regular Meeting of the Governing Body on December 10, 2018. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

Mayor Orr opened a Public Hearing for a transfer of retail liquor license application filed with the City Clerk’s office for Dillinger’s, LLC d/b/a Dillinger’s, 1601 Central Ave., Cheyenne, Wyoming (license currently held by One East Sixteenth, LLC). Upon inquiry, Ryan Clements, applicant, advised he will be a tenant occupying the first floor for a restaurant operation in the building at 1601 Central Avenue, and explained “Dillinger’s” is named after the World Champion bucking bull. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to Finance Committee.

Mayor Orr opened a Public Hearing for a bar and grill liquor license application filed with the City Clerk’s office for DBS Napoli’s Cheyenne, LLC d/b/a Napoli’s, 1901 Central Ave., Cheyenne, Wyoming. Upon inquiry, Carol Intlekofer, City Clerk, stated the application reflects the restaurant/bar operation will be occupying the southern portion of the building on the first floor (similar area as a previous bar and grill licensee) and does not include the basement, and confirmed the state statute population formula applies to bar and grill licenses, noting if the application is

approved the City still has seven licenses of this type available to issue. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing and referred the application to Finance Committee.

ORDINANCE – 3rd READING – Amending, creating, deleting and re-creating various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code relating to general provisions, and including adoption of the International Building Code and other related Codes, 2018 edition (Postponed from December 10, 2018). Joe Patterson, Guardian Companies and Southeast Wyoming Homebuilders Association, expressed support for the ordinance as previously amended, and encouraged continuing discussions between the building community and applicable City staff regarding building and fire code revisions, including the 2021 ICC code revision cycle. Tom Jacobson, speaking on behalf of the Cheyenne Board of Realtors, also expressed support for the ordinance as amended, and requested the Board be included in any on-going discussions. Comment was made that communication on proposed code revisions should be initiated earlier in the process for the next code revision cycle. Mayor Orr advised on-going discussions with staff would be supported. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#4254).

ORDINANCE – 3rd READING – Amending, deleting and re-creating sections within Chapter 8.12, International Fire Code adopted, of Title 8, Health and Safety, of the Cheyenne City Code relating to general provisions state pertaining to fire protection and regulations, and adoption of the International Fire Code, 2018 edition, and certain Codes and practices promulgated by the National Fire Protection Association (Postponed from December 10, 2018). Joe Patterson, Guardian Companies and Southeast Wyoming Homebuilders Association, expressed support for the ordinance as previously amended. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#4255)

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from MR Medium Density Residential to NR-2 Neighborhood Residential – Medium Density for Lots 1 and 2, Block 534, Original City of Cheyenne, situated in the NW ¼ of Section 5, T.13N., R.66W., of the 6th P.M., Cheyenne, Wyoming (located at the southwest corner of the intersection of east 10th Street and House Ave). Mr. Roybal moved to approve on second reading, seconded by Mr. Shanor. Upon inquiry concerning purpose of the re-zoning request, Scott Roberts, Planning and Development office, advised re-zoning is affiliated with a re-plat to allow for rehabilitation of single-family residences to subsequently be sold individually, each with its own lot. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from Overland Trails Planned Unit Development (PUD) to LI, Light Industrial for a parcel of land consisting of Tract

B, Overland Trails Fifth Filing Subdivision, Cheyenne, Wyoming (located east of Clear Creek Parkway and south of College Drive). Mark Butler, Drexel Barrell & Company, agent for the applicant, advised the re-zoning request is affiliated with a proposed Flying J Truck repair and maintenance facility to be built upon the site. Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending Section 6.2.7 of the UDC to remove the maximum parking limitation and to allow applicants to request the Director to approve additional parking. Mr. Roybal moved to approve on second reading, seconded by Mr. Shanor. Upon inquiry, Susana Montana, Planning and Development office, provided information on the proposed UDC amendment, advising the change was brought forward by staff and the Planning Commission to provide for administrative flexibility relating to UDC maximum parking requirements for developments or redevelopments. Discussion included raising the 10 percent threshold (contained in Section 6.2.7) to 25 percent as discussed at the recent Public Services Committee (PSC) meeting. Ms. Montana and Charles Bloom, Director of Planning and Department, indicated an amendment to increase the threshold would be prepared for the next PSC meeting. Motion to approve carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”.

RESOLUTION – Pursuant to Section 2.2.2 of the Cheyenne Unified Development Code authorizing approval of a revised Cheyenne Business Parkway Corridor Plan as a Development Master Plan for the Cheyenne Business Parkway Development (located on the north side of Campstool Road between Burlington Trail and Christensen Road). Mr. Roybal moved to adopt, seconded by Mr. Case. Mr. Roybal moved to amend by substitute Sheet L4.0 to Attachment A which involves sketch adjustments to the right-of-way landscaping, seconded by Mr. Case. Susana Montana, Planning and Development office, explained the amendment is to correct an inadvertent error involving inclusion of the south side of Campstool as part of the Parkway Corridor, and clarified the amendment will delete the sketches of landscaping located within that right-of-way due to the land not being located within the Parkway. Discussion followed on Corridor greenway path and sidewalk widths and locations; City maintenance and cost of same (ex: snow removal; concrete repairs); maintenance responsibilities between departments and coordination of same; greenway vs. public works maintenance budgets; management of City non-motorized transportation systems, and involvement by the Metropolitan Planning Organization (MPO) relative to planning of future non-motorized transportation system growth in the vicinity. During discussion, Ms. Montana provided information in response to comments and noted the MPO has been involved in looking at other future greenway/sidewalk connectivity in the area. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#5964)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for 10th Street Subdivision, the west 7 feet of Lot 1, and all of Lot 2, Block 534, Original City of Cheyenne, situated in the NW 1/4 of Section 5, T.13N., R.66W., of the 6th P.M., Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of East 10th Street and House Avenue – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to execute a Wyoming Cultural Trust Fund Grant Agreement for Historic Airport Fountain, Restoration Phase 1. Motion (per Consent Agenda) carried. (#5965)

[CA] RESOLUTION – Authorizing a one-time payment to full-time and permanent part-time employees of the City of Cheyenne (excluding the Firefighters Union Local No. 279 and employees of the Cheyenne Board of Public Utilities) in recognition of their outstanding efforts. Motion (per Consent Agenda) carried. (#5966)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant for installation of new synthetic turf at Powers Field Infield. Motion (per Consent Agenda) carried. (#5967)

[CA] RESOLUTION – Certifying that the Governing Body of the City of Cheyenne supports the Town of Burns project to be submitted to the State Loan and Investment Board by the Laramie County Commissioners, for 2015-2016 Countywide Consensus Block Grant Funding in the amount of \$49,500.00. Motion (per Consent Agenda) carried. (#5968)

[CA] RESOLUTION – Designating local banks as depositories for municipal funds – referred to Finance Committee. (Sponsor – Mr. White)

Professional Services Agreement between the City of Cheyenne and Vortex International Aquatic Play Solutions, Carrollton, Texas, for the design and construction of a splash pad at the Depot Plaza (General Fund and Visit Cheyenne fundraising donations). Darren Rudloff, Visit Cheyenne, commented on successful community fundraising efforts and in support of the project. Mr. White moved to approve in an amount not to exceed \$500,000.00, seconded by Mr. Roybal. Mr. Case moved to amend, seconded by Mr. Shanor. It was noted the proposed amendment changes the project completion date from November 1, 2019 to May 24, 2019 and adds the following sentences at the end of Paragraph 2: “Upon execution of this Agreement, the City Mayor shall designate a Project Manager to observe performance of work and adherence to the Project Schedule. Consultant shall submit to the Project Manager for acceptance proposed adjustments in the Project Schedule that will not result in extending the project completion date. Adjustments in the Project Schedule that result in extending the project completion date may only be made by a contract modification approved by the City Governing Body.” Discussion included the following topics: Proposed change in completion date and effect due to weather delays; ample completion time to assure a quality project; designation of and identification of funding for services by a contract Project Manager; identifying existing underground utilities which may be unknown, and may affect the project budget, until excavation for the project begins; past identification of utility locations during Depot Plaza construction; estimated two week project installation time frame following utility locates; circumstances which may result in project construction extending into the Depot Plaza events season; source of additional project funds if needed relative to fundraising efforts and the project budget; Project Manager providing oversight and “shepherding” of the project; possibility of governing body approval for any needed amendments to the schedule and timing of same based upon the governing body’s agenda process; in-house vs. outside Project

Manager consideration; no reference to penalties being assessed in contract language relative to the project completion time frame, and anticipated starting date (April 1) for site work. During discussion, information on a contract Project Manager; project funding (limitation) and proposed project schedule, if a future amendment is needed, was provided by Mayor Orr. Teresa Moore, Director of Community Recreation and Events, and Amy Allen, City Engineer, responded to inquiries regarding project time frame; design/build project aspects; time frame of conducting underground utility locations (ie: ground frost conditions), and potential construction time frame and additional cost concerns. Motion to amend carried. Voting “yes” – Mr. Case, Mr. Cook, Mr. Laybourn, Mr. Luna, Mr. Roybal and Mr. Shanor. Voting “no” – Mr. Johnson, Dr. Rinne, Mr. White and Mayor Orr. Comment was made on taking the time to do the project “right”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#6933)

[CA] Utility Easement with Cheyenne Light, Fuel and Power dba Blackhills Energy to be located along 22nd Street between Pioneer Avenue and O’Neil Avenue. Mr. White moved to approve, seconded by Mr. Luna. Mr. White moved to amend by substitute dated December 14, 2018, seconded by Mr. Case. Upon inquiry, Jack Studley, City Surveyor, confirmed the purpose of the substitute is to correct the legal description involving property ownership of the land involved. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6934)

[CA] Amendment No. 1 to Professional Services Agreement, Contract No. 6828, between the City of Cheyenne and Terracon Consultants for the 2018 Capitol North Historic District Expansion, to extend the completion date. Motion (per Consent Agenda) carried. (#6828)

[CA] Contract Modification #2 to Contract #6759 between the City of Cheyenne and Collins Engineers, Inc., for additional construction management services for the Christensen Road Overpass Project (1% Specific Purpose Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$256,470.00). (#6759)

[CA] Contract Modification #3 to Professional Services Agreement #6552 between the City of Cheyenne and HDR Engineering, Inc. for additional right-of-way work for the Prairie Ave. & Frontier Mall Dr. Intersection Improvements Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed (\$24,325.08). (#6552)

[CA] Consideration of Bid #E-10-19 for furnishing one truck for the Fleet Division and one truck with a plow for the Facilities Division (2015-2018 1% Sales Tax and general fund) – referred to Finance Committee.

Reappointment of Jamie Davis to the Police Civil Service Commission; Thomas Smith to the Housing and Community Development Advisory Council; Jeremy Arneson to the Planning Commission; Gary Sims and Jamie McGrew to the Historic Preservation Board; Randy Byers and Bob Clary to the Building Code Board of Appeals, and Patrick Green to the Personnel Commission. Mr. Johnson moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Appointment of Carey Ryerson to the Cheyenne Regional Airport Board; Kevin Paintner, Deb Sanchez and Renee Gamino to the Housing and Community Development Advisory Council; Michael O'Donnell and Ted Gertsch to the Planning Commission; Lieutenant Terrance Bell to the Laramie County Juvenile Services Joint Powers Board; Swede Nelson to the Board of Adjustment; Don Herrold and Art Reese to the Historic Preservation Board, and Timothy Wilson to the Personnel Commission. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Announcement was made that the Sine Die and First Regular Meetings of the Governing Body will be held Monday, January 7, 2019 beginning at 2:30 p.m. and 2:45 p.m. respectively in City Council Chambers, Municipal Building, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Announcement was made that due to the Sine Die and First Regular Meetings of the Governing Body, the regularly scheduled City Council Finance Committee meeting at 11:00 a.m. on Monday, January 7, 2019 will instead be held on Tuesday, January 8, 2019 at 11:00 a.m., and the regularly scheduled City Council Public Services Committee meeting at Noon on Tuesday, January 8, 2019 will instead be held on Wednesday, January 9, 2019 at Noon. Both Committee meetings will be held in the Municipal Building, 2101 O'Neil Avenue, Room #104, Cheyenne, Wyoming.

Under other business:

Jeff Dierksen, speaking on behalf of residents on Pinto Lane, discussed speed studies that had been conducted and interpretation of speed measurement percentiles, and expressed his continuing concern with high speeds by vehicle drivers traveling through the neighborhood affecting safety. During his comments Mr. Dierksen distributed information (on file with the office of City Clerk) on speed data he had compiled through use of a personally owned speed gun. Comments followed and included the following topics: Speed gun calibration; neighborhood safety awareness; governing body authority to determine speed limits set by state statute provisions, and suggestions to Mr. Dierksen on seeking solution to his concerns through the Wyoming Department of Transportation and State Transportation Commission.

Mr. Cook noted that at the December 10, 2018 City Council meeting, the motion to approve Amendment No. 3 to City Contract No. 3911 between the City of Cheyenne and Bresnan Communications, LLC, L/K/A Charter Communications, to extend the contract term, failed. Mr. Cook, advising he had voted on the prevailing side, and pursuant to City Code Chapter 2.04, moved to reconsider the vote taken on the main motion, seconded by Dr. Rinne. Ben Rowland, Davis and Cannon, LLP, outside legal counsel working with the City's contracted firm to negotiate an agreement renewal with Charter, advised negotiations for a new agreement are close to being completed and requested approval of the reconsideration and extension of time to complete the process. He clarified a previous amendment to the agreement was not affiliated with work being conducted on negotiations, and, upon inquiry, confirmed telecommunication companies are governed by the Federal Telecommunications Act. During comments, Dr. Rinne raised a point of order that comments should remain pertinent to the motion to reconsider with Mayor Orr

concurring with the point of order. Motion to reconsider carried. Voting “yes” – all members of the governing body with the exception of Mr. Luna voting “no”. Discussion then returned to the main motion to approve the item as made at the December 10, 2018 meeting, and included the purpose of extending the contract term; new agreement provisions relative to citizens’ concerns involving customer service issues; cost of services provided by Charter, and residents’ concerns pertaining to lack of a choice for community telecommunications service providers. During discussion, Mr. Rowland encouraged governing body members to share information with him on issues of concern regarding Charter’s services, and advised Charter’s local customer service center is located on Carlson Street. Motion to approve the contract extension carried. Voting “yes” – all members of the governing body with the exception of Mr. Luna voting “no”. (#3911)

Council President Dr. Rinne and Mayor Orr expressed appreciation to Carol Intlekofer, City Clerk, who is retiring at the end of the year following over 35 years of service to the City. Ms. Intlekofer thanked current and prior members of the governing body and staff members for their support and the opportunities that had been provided her during her term of service.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:03 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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